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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter J —Bridges

Part 114 General

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PART 114—GENERAL

Authority: 33 U.S.C. 401, 406, 491, 494, 495, 499, 502, 511, 513, 514, 516, 517, 519, 521, 522, 523, 525, 528, 530, 533, and 535(c), (e), and (h); 14 U.S.C. 503; 49 U.S.C. 1655(g); Pub. L. 107-296, 116 Stat. 2135; 33 CFR 1.05-1 and 1.01-60, DHS Delegation No. 00170.1, Revision No. 01.4.

Source: CGFR 67-46, 32 FR 17769, Dec. 12, 1967, unless otherwise noted.

§ 114.01 Purpose.

- (a) The purpose of the rules and regulations in this subchapter is to implement certain laws and set forth the requirements for:
 - (1) Locations and clearances of bridges and causeways over the navigable waters;
 - (2) Administration of the alteration of unreasonably obstructive bridges; and
 - (3) Regulation of drawbridge operation.
- (b) The rules and regulations in this subchapter also describe the procedures, practices, and instructions, which are applicable to the public subject to certain laws governing bridges and causeways over the navigable waters of the United States.

[USCG-2008-0179, 73 FR 35012, June 19, 2008, as amended by USCG-2013-0397, 78 FR 39174, July 1, 2013]

§ 114.05 Definitions.

The following definitions apply to this subchapter:

Approved means approved by the Commandant unless otherwise stated.

Bridge means a structure erected across navigable waters of the United States, and includes causeways, approaches, fenders, and other appurtenances thereto.

Coast Guard District Commander or District Commander means an officer of the Coast Guard designated as such by the Commandant to command all Coast Guard activities within his or her district. (See part 3 of this chapter for descriptions of Coast Guard Districts.)

Commandant means Commandant, U.S. Coast Guard, Department of Homeland Security, Washington, DC 20593.

Deputy Commandant for Operations means the officer of the Coast Guard designated by the Commandant as the staff officer in charge of "Operations" (DCO), U.S. Coast Guard Headquarters.

District Office or Coast Guard District Office means the Office of the Commander of a Coast Guard District.

Headquarters or Coast Guard Headquarters means the Office of the Commandant, U.S. Coast Guard, Department of Homeland Security, Washington, DC 20593-7000.

Permit means the license permitting construction of bridges and approaches thereto in or over navigable waters of the United States, issued under the rules and regulations in this subchapter.

Secretary means the Secretary of Homeland Security or any person to whom he or she has delegated his or her authority in the matter concerned.

United States Coast Guard or Coast Guard means the organization or agency established by the Act of January 28, 1915, as amended (14 U.S.C. 101).

[USCG-2012-0306, 77 FR 37313, June 21, 2012, as amended by USCG-2020-0304, 85 FR 58278, Sept. 18, 2020]

§ 114.10 General policies on issuance of permits and drawbridge operation regulations.

The several bridge laws referenced in the Authority for part 114, are intended to prevent any interference with navigable waters of the United States whether by bridges, dams, dikes or other obstructions to navigation except by express permission of the United States. The decision as to whether a bridge permit or a drawbridge operation regulation will be issued or promulgated must rest primarily upon the effect of the proposed action on navigation to assure that the action provides for the reasonable needs of navigation after full consideration of the effect of the proposed action on the human environment. The Coast Guard is not responsible for any other permits that the applicant may need from other federal, state, or local agencies and issuance of a bridge permit does not affect flood control projects or other governmental programs.

[CGD 82-006, 47 FR 36640, Aug. 23, 1982, as amended by USCG-2000-7223, 65 FR 40056, June 29, 2000; USCG-2013-0397, 78 FR 39174, July 1, 2013]

§ 114.20 Departure from permit plans.

- (a) If the final inspection shows a minor departure from the authorized plans which does not materially affect navigation, the permittee will be required to furnish as-built plans showing the work as actually constructed but no further action will be taken by the Coast Guard.
- (b) It is not the practice of the Coast Guard to issue letters certifying that completed work conforms to that which was authorized. That question is a matter of fact to be determined in case of controversy by the usual rules of court procedure.

[CGFR 67-46, 32 FR 17769, Dec. 12, 1967, as amended by USCG-2012-0306, 77 FR 37314, June 21, 2012]

§ 114.25 Work constructed without prior authority.

The Commandant or District Commander will approve plans and issue permits authorizing bridges across navigable waters, in cases where the application therefor is submitted after the commencement or completion of the bridges subject to the following rules: Approval will be limited to those cases where the necessary primary authority, State or Federal as the case may be, validly existed, when the work was innocently constructed, and where the work will not unreasonably interfere with navigation. Upon issuance of the permit, applicant will be informed that the law contemplates prior approval and that in the future plans must be submitted in ample time for their consideration by the Commandant or District Commander before construction is begun.

(5 U.S.C. 559; 14 U.S.C. 503; 33 U.S.C. 401, 491, 499, and 525; and 49 CFR 1.46(c) and (q))

[CGD 80-099, 46 FR 38354, July 27, 1981, as amended by USCG-2013-0397, 78 FR 39174, July 1, 2013; USCG-2020-0304, 85 FR 58278, Sept. 18, 2020]

§ 114.30 Revocation.

Permits may be revoked by the issuing official for failure on the part of the permittee to comply with any of the conditions therein, or where the structures or other work constitute an unreasonable obstruction to navigation or to operations of the United States in the interest of navigation or flood control.

[CGD 82-006, 47 FR 36640, Aug. 23, 1982]

§ 114.40 Violations of law.

The Coast Guard has the authority and responsibility for enforcement of the applicable provisions of law for the protection and preservation of navigable waters. It is the policy of the Coast Guard to secure compliance with these provisions of law short of legal proceedings. As a general principle, no action is taken when the violation is minor, unintentional, or accidental and the party responsible corrects the violation. It is the policy of the Coast Guard to implement civil or criminal proceedings in all other circumstances. These proceedings are in subpart 1.07 of Part 1 of this chapter.

(Secs. 107, 108, Pub. L. 97-322, 96 Stat. 1582; (33 U.S.C. 495, 499, 502, 525, 533); 49 CFR 1.46(c))

[CGD 82-102, 47 FR 54299, Dec. 2, 1982, as amended by USCG-2001-9286, 66 FR 33641, June 25, 2001]

§ 114.45 Applications, extensions of time.

Extensions of time to commence or complete construction of a bridge or remove a bridge that has been replaced as an element of a permitted bridge project must be submitted to, and received by the District Commander at least 30 days before the existing permit expires to allow the permit to remain in effect until the final agency action is taken.

(33 U.S.C. 401, 491, 525, 535; 49 CFR 1.46(c) (8), (9), (10), (q))

[CGD 76-144, 42 FR 28882, June 6, 1977]

§ 114.50 Right of appeal.

A District Commander's decision to deny a bridge permit application or an application for drawbridge operation regulations may be appealed to the Commandant, U.S. Coast Guard. The appeal must be submitted in writing to the Commandant (CG-BRG), Attn: Office of Bridge Programs, U.S. Coast Guard Stop 7418, 2703 Martin Luther King Jr. Avenue SE., Washington, DC 20593-7418 or HQS-SMB-CG-BRG@uscg.mil , within 60 days of the District Commander's decision. The Commandant will take action on the appeal within 90 days of its receipt.

(5 U.S.C. 559; 14 U.S.C. 503; 33 U.S.C. 401, 491, 499, and 525; and 49 CFR 1.46(c) and (q))

[CGD 80-099, 46 FR 38354, July 27, 1981]

Editorial Note: For FEDERAL REGISTER citations affecting § 114.50, see the List of CFR Sections Affected, which appears in the Finding Aids section of the printed volume and at www.govinfo.gov.